

No.DOPT-1743674627466
Government of India
Ministry of Personnel, Public Grievances & Pensions
Department of Personnel and Training
AIS(AIS-II (PENSION))

North Block, New Delhi

Dated 28 March, 2025

OFFICE MEMORANDUM

Subject:- Allowing female AIS officers/pensioners to nominate her child/children for family pension in precedence to her husband in the event of marital discord leading to filing of divorce proceedings in a Court of Law or filing of a case under Protection of Women from Domestic Violence Act or Dowry Prohibition Act or Indian Penal Code.

I am directed to say that, as per Rule 22 of All India Services (Death-cum-Retirement Benefits) Rules, 1958, if a deceased member of service or pensioner is survived by a spouse, family pension is first granted to the spouse, and the children and other family members become eligible for family pension, on their turn, only after the spouse of the deceased member of service/pensioner becomes ineligible for family pension or dies.

2. In pursuance of Department of Pension & Pensioners' Welfare (DOP&PW) vide O.M. No.1/1(1)/2023-P&PW(E) dated 01.01.2024 (copy enclosed), it has been decided that in case divorce proceedings in respect of a female member of service/female pensioner are pending in a Court of Law, or the female member of service/female pensioner has filed a case against her husband under Protection of Women from Domestic Violence Act or under Dowry Prohibition Act or under Indian Penal Code, such female member of service/female pensioner may make a request for grant of family pension after her death to her eligible child/children, in precedence to her husband. The provisions of the aforementioned O.M. dated 01.01.2024 of Department of Pension & Pensioners' Welfare are hereby extended *mutatis mutandis* to members of All India Services.

[OM No: No.1/1\(1\)/2023-P&PW\(E\) Dated: 1/1/2024](#)

(Sign of Authority)
Bhupinder Pal Singh
Under Secretary
23094714
